

FEDERAL MARITIME COMMISSION

SHIPCO TRANSPORT INC.

v.

JEM LOGISTICS, INC., AND ANDI
GEORGESCU, AN INDIVIDUAL AND
D/B/A JEM LOGISTICS, INC.

Docket No. 12-06

Served: December 20, 2013

BY THE COMMISSION: Mario CORDERO, *Chairman*,
Richard A. LIDINSKY, Jr., Rebecca F. DYE, Michael A.
KHOURI, and William P. DOYLE, *Commissioners*.

Order Granting Petition for Attorney's Fees

I. PROCEEDING

Shipco Transport Inc. (Complainant or Shipco) filed a complaint with the Federal Maritime Commission (FMC or Commission) on April 18, 2012. A Verified Amended Complaint was filed with the Commission on August 24, 2012. Complainant alleged that Jem Logistics, Inc. (Jem Logistics) and Andi Georgescu (Georgescu) (collectively Respondents) violated various sections of the Shipping Act. On March 26, 2013, the Administrative Law Judge (ALJ) issued an Initial Decision on

Default. On April 4, 2013, Respondent Georgescu filed a Petition to Set Aside Default. On August 21, 2013, the Commission issued an Order Affirming Initial Decision on Default granting reparations in the amount of \$8,068.57 and interest of \$18.57, totaling \$8,068.57. *Shipco Transport Inc. v. Jem Logistics, Inc.*, 32 S.R.R. 1855 (FMC 2013). On September 20, 2013, Complainant filed a Verified Petition re Attorney's Fees, within the required 30-day filing deadline.¹

For the reasons stated below, the Commission:

- (1) grants the Petition for Attorney's Fees; and
- (2) awards attorney's fees in the amount of \$1,600.00, based on 32 hours of attorney work time, at a rate of \$50.00 per hour.

II. DISCUSSION

The Commission grants the Petition for Attorney's Fees, based on the fact that the attorney's fees requested are reasonable pursuant to the Laffey Matrix.²

As set out in the Petition, there were 32 hours of attorney work time, at an hourly rate of \$50 per hour. This is supported by billable hour logs attached as Exhibits A and B to the Affidavit Re Attorney's Fees.

Attorneys for Complainant state that Complainant was billed for services performed from April 16, 2012 to August 30,

¹ See 46 C.F.R. § 502.254(c)(1).

² The Laffey Matrix has been accepted as a benchmark for reasonable attorney's fees. See, e.g., *McDowell v. District of Columbia*, Civ. A. No. 00-594 (RCL), LEXSEE 2001 U.S. Dist. LEXIS 8114 (D.D.C. June 4, 2001).

2012, and from December 7, 2012 to September 17, 2013, totaling \$1,600, and representing 32 hours of attorney work time. Shipco was billed on the basis of a flat fee of \$800.00 at the beginning of attorney work, and \$800.00 at the conclusion of the case when the Final Order was issued. These attorney's fees are reasonable pursuant to the Laffey Matrix, which provides a starting rate for an attorney with one to three years experience of \$312 per hour during the same time period. Therefore, \$50 per hour is a reasonable rate for attorney work time and the request for attorney's fees is granted.

CONCLUSION

THEREFORE, IT IS ORDERED, That the Verified Petition re Attorney's Fees is Granted;

IT IS FURTHER ORDERED, That Complainants are awarded \$1,600.00 in attorney's fees, based on 32 hours of attorney work time at a rate of \$50.00 per hour; and

FINALLY, IT IS FURTHER ORDERED, That this proceeding is discontinued.

By the Commission.

Karen V. Gregory
Secretary